

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

GREG MENO,
Plaintiff,

Case No. 11-cv-00874 – CMA – MJW

v.

FEDEX CORPORATE SERVICES, INC.,
A Delaware Corporation.

Defendant.

AMENDED COMPLAINT

COMES NOW the plaintiff, Greg Meno, and for his amended complaint against defendant FedEx Corporate Services, Inc. does allege and state as follows:

I. PARTIES

1. Greg Meno is a former employee of Fed Ex Corporate Services, Inc., and was terminated from his employment with defendant on June 4, 2010.

2. Defendant FedEx Corporate Services, Inc. is, upon information and belief, a Delaware corporation in good standing, doing business in the State of Colorado and this judicial district.

II. JURISDICTION AND VENUE

3. Jurisdiction over this discrimination in employment and breach of contract action is conferred by Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. 1981 and 2000e *et seq.*, 28 U.S.C. 1331, and state claims under 28 U.S.C. 1367.

4. Venue is proper in this Court as a result of the removal of the state case pursuant to 28 U.S.C. 1441

III. GENERAL ALLEGATIONS

5. Plaintiff Greg Meno was employed by FedEx Corporate Services, Inc. (hereinafter "FedEx") on May 19, 1986. Before his termination on June 4, 2010, plaintiff held the positions of Senior Manager, FedEx Express; Senior Program Manager, FedEx Logistics; IT Manager of Technology Services. Mr. Meno was employed in Denver, Colorado, and was responsible for FedEx operations in this judicial district, the state of Colorado and surrounding states.

6. Beginning in June 2009, plaintiff began receiving complaints from other FedEx employees and FedEx customers about a certain employee in plaintiff's division,

a Senior Customer Technology Consultant – Customer Integration Consultant (CIC), Michael A. Steele.

7. In his capacity as a manager and supervisor of the CIC employee, plaintiff contacted Patty Pierce, HR Advisor for FedEx in Memphis, Tennessee, and Mary Gonzales, Director, Technology Services, Los Angeles, California.

8. Pursuant to FedEx manager's policy and instructions, and at the direction of Ms. Pierce and Ms. Gonzales, plaintiff documented the incidents involving Mr. Steele and presented the documentation to FedEx HR representatives and plaintiff's manager.

9. FedEx had previously provided Mr. Steele with letters of counseling relating to performance on January 5, 2006 and April 28, 2006 and followed those counseling letters with a letter of warning on May 9, 2006 concerning performance.

10. Plaintiff, with the advise and consent of HR Advisor Pierce and supervisor Mary Gonzalez, issued Mr. Steele an additional letter of warning for performance on July 24, 2009, later modified to a September 1, 2009 letter of counseling for performance, followed with a second letter of counseling on October 8, 2009, and finally sent Mr. Steele a letter of warning for performance dated December 22, 2009.

11. In February 2010, plaintiff was advised of a potential workplace violence issue involving Mr. Steele. Plaintiff followed FedEx procedures and notified HR Advisor Pierce and Director of Technology Services Gonzales of the issue, which had been sent to plaintiff via email. The employee was placed on administrative leave based on FedEx policy and procedures, by Director Gonzales.

12. Between February 2010 and May 29, 2010, plaintiff at the direction of FedEx management compiled documentation on employee Steele's marginal performance and history of counseling for performance, and documented the workplace violence allegation. Plaintiff presented the material to FedEx Human Resources and his supervisor as directed by FedEx policy guidelines and as required by FedEx managers. Plaintiff was criticized by FedEx management's Patty Pierce for his proposed actions against Steele, with Pierce referring to plaintiff as a member of a different "culture" or different "breed" during their discussions.

13. On June 4, 2010, plaintiff was notified by Inter-Office Memorandum that he was being terminated from employment for "gross leadership failure."

14. The leadership failure was specified as failure to follow FedEx guidelines and requirements by improperly issuing the October 8, 2009 letter of counseling, breaching confidentiality, failure to consider pertinent information, and failure to timely provide supporting documentation to support termination of the employee for performance deficiencies.

15. Plaintiff had no prior disciplinary or counseling record with FedEx at the

time of termination.

16. Plaintiff timely filed a charge of discrimination with the U. S. Equal Employment Opportunity Commission, EEOC Charge No. 541-2011-00434. The EEOC issued its dismissal and notice of right to sue by letter dated December 15, 2010. This action is brought within ninety (90) days of the receipt by plaintiff of said Dismissal and Notice of Rights.

IV. FIRST CLAIM FOR RELIEF

(Discrimination in Violation of Title VII of the Civil Rights Act)

17. Plaintiff's national origin is Guamanian and, as such, he is a member of a protected group of persons under Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§2000e.

18. At all relevant times, FedEx has continuously been an employer engaged in an industry affecting commerce within the meaning of Section 701(b), (g) and (h) of Title VII, 42 U.S.C. §§2000e-(b), (g) and (h).

19. Plaintiff was hired by defendant as a full-time regular employee and was so serving on June 4, 2010, the date of discharge.

20. Plaintiff at all times performed his job duties in a satisfactory manner.

21. Plaintiff was discharged on June 4, 2010. Plaintiff's position with FedEx was filled with an individual not in the plaintiff's protected group or any other protected group under Title VII.

22. In investigating and subsequently discharging plaintiff, defendant knowingly and willfully engaged in illegal employment practices and policies that have discriminated against plaintiff because of his national origin, including but not limited to favoring a person not in the protected group in a disciplinary and performance setting to the detriment of plaintiff, tolerating discriminatory and derogatory comments from other employees about plaintiff reflective of his national origin, and making comments through its human resources personnel that were derogatory of plaintiff's national origin or race. Such practices violated Title VII, 42 U.S.C. §2000e *et. seq.*

23. As a proximate result of defendant FedEx actions, plaintiff has suffered loss of employment, loss of career advancement opportunity, emotional and mental injury, loss of self-esteem, and other injuries and losses in an amount to be proved at trial.

V. SECOND CLAIM FOR RELIEF

(Breach of Implied Contract or Promissory Estoppel)

24. Plaintiff incorporates the allegations of paragraphs 1 through 16 by

reference.

25. At all times material, FedEx maintained written policies and procedures, including but not limited to FedEx Policy and Procedures Manual, and the FedEx Managers Guide.

26. The written policies of defendant were a condition of continued employment for FedEx employees, in that said employees were expected to comply with the policies and procedures. FedEx, by imposing the conditions of employment on plaintiff through the documents referenced in paragraph 25, evidenced a willingness and obligation on the part of the employer to be bound by the specific terms of the documents and their restrictions on terminating employment. Plaintiff reasonably relied on the terms of the documents.

27. Despite requiring plaintiff to comply with said written policies and procedures as a condition of his continued employment, defendant violated those policies and procedures by subjecting plaintiff to discipline in the form of termination without itself complying with the requirements of the written and verbal policies and without notice to plaintiff or providing plaintiff with an opportunity to improve.

28. Defendant's failure to adhere to its own policies and procedures, including but not limited to defendant's own progressive discipline policy, constituted a breach of contract, express or implied, entitling plaintiff to relief and damages in an amount to be proved at trial.

VI. THIRD CLAIM FOR RELIEF

(Retaliation in Violation of 42 U.S.C. 1981 and 42 U.S.C. 2000e-3(a))

29. Plaintiff incorporates the allegations of paragraphs 6 through 23 by reference.

30. As a result of the events, actions and omissions set forth in paragraphs 12 and 22 above, plaintiff appealed to defendant's legal department on March 15, 2010 about his treatment by management, including but not limited to the attempts at progressive discipline for Steele and the response of management, and he requested the assistance of defendant's legal department to protect him from "retaliation from upper management."

31. The complaint or appeal to defendant's legal department constituted protected activity under 42 U.S.C.A. §§ 1981 and 2000e-3(a).

32. Plaintiff was terminated from his employment on June 4, 2010.

33. There was a causal connection between plaintiff's termination and his complaining about discriminatory treatment and opposing employment practices to defendant.

34. As a proximate result of defendant FedEx actions, plaintiff has suffered loss of employment, loss of career advancement opportunity, emotional and mental injury, loss of self-esteem, and other injuries and losses in an amount to be proved at trial.

WHEREFORE, plaintiff requests judgment against defendant Fed Ex Corporate Services, Inc., for reinstatement to his position of record with defendant and damages in an amount to be proved at trial, along with pre-judgment and post-judgment interest, costs, costs of expert witnesses, attorney fees, and such other and further relief as this Court may deem recoverable.

JURY DEMAND

Plaintiff requests trial by a jury of at least six persons.

Dated this 23rd day of July 2012.

Respectfully submitted,

/s/ J. W. Dixon
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